NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT-II)

COMPANY PETITION NO. (CAA)-140(ND)/2019
IN
COMPANY APPLICATION NO. (CAA)-105(ND)/2019

IN THE MATTER OF:

Section 230 To 232 of the Companies Act, 2013

and

IN THE MATTER OF SCHEME OF AMALGAMATION

Between

M/S Indian Steel and Power Private Limited
Village Charuda, Mohandi Road
Siltara District, Raipur
Chattisgarh -493221 **...Transferor/Petitioner No.1 Company**

with

Pushp Steels and Mining Private Limited
751, Ground Floor
Kundenwalan Street,
Ajmeri Gate
Delhi-110006 **...Transferee/Petitioner No.2 Company**

and

Their respective Shareholders and Creditors

Order Delivered On : 12.01.2021

CORAM :

CH. MOHD. SHARIEF TARIQ, MEMBER (JUDICIAL)

SH. L.N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT :

For the Petitioners	: Sh. Rakesh Kumar, Advocate
For Income Tax Department	: Mr. Kunal Sharma, Advocate
For RD and OL	: Ms. Tania Sharma, Advocate

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

This Joint Application has been filed by the Indian Steel and Power Private Limited (hereinafter referred to as the 'Transferor/Petitioner No. 1 Company') and M/s Pushp Steels and Mining Private Limited (hereinafter referred to as the 'Transferee/Petitioner No.2 Company') under Sections 230 to 232 of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, for the purpose of the approval of the Scheme of Amalgamation. Both the Companies together hereinafter are referred as the 'Petitioner Companies'.

2. That on 11.10.2020, certain clarifications were sought from the Applicant Companies and RD. The same are reproduced below :

> *"1) That the RD had raised certain objections vide its Report dated 10.07.2019, responses to which were duly filed by the Petitioner Companies on 29.07.2020.*

2) *The Counsel for the RD is directed to clarify whether they are satisfied with the responses given by the Petitioner Companies or otherwise. In case they are satisfied, let them file 'no objection' towards the Scheme proposed by the Petitioner Companies. The Ld. Counsel for the RD is directed to file their response by 16.10.2020, failing which it will be presumed that they do not have any objection.*

3) *It will also be confirmed by the Applicant Companies by way of their respective affidavits that there are no proceeding/inquiry or investigation pending against either of the Applicant Companies."*

3. That the Applicant Companies in response to the same have filed their Affidavit.

4. That the RD (NR) has filed its response vide Affidavit dated 11.01.2020 and raised certain objections towards the written submission dated 29.09.2020 filed by the Petitioner Companies and has stated that some of the replies given by the Petitioner Companies are not satisfactory.

5. In view of the above, the matter stands de-reserved and is directed to be listed for further consideration. The Ld. Counsel for the Petitioner Companies and Ld. Counsel for the RD (NR) are directed to be present during hearing.

6. Registry to list the matter on 20.01.2021.

-Sd-

(L.N. GUPTA)
MEMBER (T)

-Sd-

(CH. MOHD. SHARIEF TARIQ)
MEMBER (J)

Orders pronounced today on 12.01.2021 under Rule 151 of the NCLT Rules 2016.

(T. S. Singh)
Bench Officer, Court-II